

Roshan Kumar Jha vs Smt. Sadhna Jha on 27 July, 2023

NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

FA(MAT) No. 67 of 2023

Roshan Kumar Jha S/o Shri Mahakant Jha, Aged About 33 Years R/o G.N.T. 2, House No. 75 Ring Road No. 3, Mandir Hasaud, Raipur Chhattisgarh And Other Address - M- 56, Katainar, P.S. Bankimongra, District Korba Chhattisgarh.

---- Appellant

Versus

1. Smt. Sadhna Jha W/o Shri Roshan Kumar Jha, Aged About 30 Years D/o Shri Ashok Mishra, R/o House No. 05, A.T.M. Chowk, Avanti Vihar, Raipur Chhattisgarh.

2. Minor Sourya Jha, S/o Roshan Kumar Jha, Aged About 3 Years Through Legal Natural Guardian Mother Respondent No. 1 Smt. Sadhna Jha, W/o Roshan Kumar Jha R/o House No. 05, A.T.M. Chowk, Avanti Vihar, Raipur Chhattisgarh.

---- Respondents

AND

FA(MAT) No. 68 of 2023

Roshan Kumar Jha S/o Shri Mahakant Jha Aged About 33 Years R/o G.N.T. 2, House No.75, Ring Road No.3, Mandir Hasaud, Raipur, Chhattisgarh.

---- Appellant

Versus

Smt. Sadhna Jha W/o Shri Roshan Kumar Jha, D/o Shri Ashok Mishra Aged About 30 Years R/o Presently House No.05, A.T.M. Chowk, Avanti Vihar, Raipur, Chhattisgarh.

---- Respondent

For Appellants : Mr. A.D. Kuldeep, Advocate
For Respondent : Mr. Vijay Sahu, Advocate
Hon'ble Shri Goutam Bhaduri

Hon'ble Shri Sanjay S Agrawal

Order on Board

Per Goutam Bhaduri, J.

27/07/2023 Heard.

1. Since the issue involved in both the appeals is similar, therefore, they are being decided by this common order.

2. Perusal of both the appeals would show that the application preferred by the appellant-husband under Section 9 of the Hindu Marriage Act, 1955 in case No. 976/2022 and application under Section 7 read with Section 8 of Guardians of Ward Act, 1890 in case No. 149/2022, have been dismissed for want of jurisdiction by observing that the respondent-wife & child were not residing within the Jurisdiction of Family Court, Raipur Court and they were residing at Korba, a different District.

3. The impugned orders would further show that the adjudication of both the cases are not on merits. Apart from this, records would also show that the respondents were not served in the given address of Raipur. However, it has been stated that wife was not in know about filing of the petition but after they came to know that such proceedings have been filed at Raipur, they apprised the Family Court about lack of jurisdiction.

4. For the sake of convenience, Section 19 of the Hindu Marriage Section Act, 1955 is reproduced as under:-

"19. Court to which petition shall be presented.- Every petition under this Act shall be presented to the District Court within the local limits of whose ordinary original jurisdiction-

- (i) the marriage was solemnized, or
- (ii) the respondent, at the time of the presentation of the petition resides, or
- (iii) the parties to the marriage last resided together, or

(iiia) in case the wife is the petitioner, where she is residing on the date of presentation of the petition, or

(iv) the petitioner is residing at the time of the presentation of the petition, in a case where the respondent is, at that time, residing outside the territories to which this Act extends, or has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of him if he were alive."

5. Further, Section 4 (5) (b) (ii) A of the Guardians of Wards Act, 1890 states as under:-

" 4 Definitions.--

(5) "the Courts" means -

(a) xxx xxx xxx

(b) xxx xxx xxx

(ii) in any matter relating to the person of the ward

the District Court having jurisdiction in the place where the ward for the time being ordinarily resides; or

6. Since the respondent-wife has child and she was not residing within the jurisdiction of Family Court, Raipur, as such there is nothing on record to show that the respondent-wife was residing within the jurisdiction of Family Court, Raipur, therefore, on this short issue, we are not inclined to interfere with the orders passed by the Family Court.

7. Accordingly, the orders passed by the Family Court, Raipur in Case No. 976/2022 and Case No. 149/2022 are affirmed.

8. In the result, both the appeals are dismissed. However, the appellant- husband shall be at liberty to file appropriate application within the concerned jurisdiction of the Family Court.

Sd/-

(Goutam Bhaduri)
Judge

Sd/-

(Sanjay S Agrawal)
Judge

rahul